
The Deep Irony of the Epstein Scandal Finally Coming Home to Roost

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It's tempting to dismiss the recent simmer-to-boil developments in the Trump administration's [handling of the Jeffrey Epstein "files"](#) as the ultimate theater of schadenfreude. But the story also illustrates how Donald Trump and his acolytes consolidate power—and what happens when they can't deliver on the empty promises made along the way. For years, Trump and his allies weaponized the Epstein case to stroke fury against the government, then seized upon that anger to take back the White House and launch new assaults on democracy and civil rights.

Now the rage is turning in his direction as the MAGA faithful realize that it was all a distraction.

On this week's episode of Amicus, Dahlia Lithwick spoke with Maya Wiley, president and CEO of the Leadership Conference on Civil and Human Rights, about the president's cynical exploitation of the Epstein controversy and the backlash he faces now that he can't deliver. Their conversation has been edited and condensed for clarity.

Dahlia Lithwick: Between Mike Johnson shutting down Congress and Trump sending his deputy attorney general over to have a chat with a convicted sex trafficker about what she knows, it really seems as though we have reached a chilling new low in both the Justice Department and the Republican Congress simply doing the work of Donald Trump's private law firm.

Maya Wiley: It is fundamentally about protecting power to the exclusion of the people. The core of the Jeffrey Epstein story is about accountability and transparency. Because victims' privacy should be protected; they should be cherished and cared for. And our criminal justice system is supposed to do that. That's why we *have* sealed grand jury transcripts. And so at the core of this is an incredible abuse of power—a high-ranking official in the DOJ doing a president's personal bidding with someone convicted of very serious crimes.

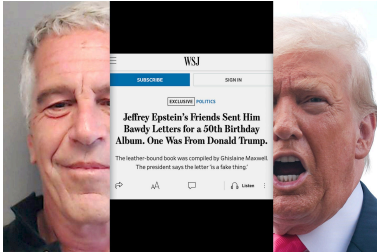
The other side of this, though, is how we got here in the first place. They blew up lies and conspiracy theories about the deep state. It is the same kind of conspiracy theories they're utilizing to roll back all our rights and to do it with impunity, despite the fact that it violates existing law, that it violates precedent of the Supreme Court, that we have a majority of the high court that is complicit, that it ignores the powers of Congress to pass laws and appropriate funds.

Trump's talk about all the "rapists" who come in from foreign countries, all the people who are "stealing" birthright citizenship, all the claims of voter fraud and stolen elections—everything is being weaponized. And it's always rooted in a conspiracy theory that "they" are coming to do this. And this justifies all the policies that are going to end civil rights. But this is a weird case in which the conspiracy is actually coming home to roost.

This is a bonfire that Trump and his minions created. And it's not just Trump. It's Trumpism. There's a whole extremist ideological wing that has been blowing conspiracy theories about Black people, about Latino immigrants, sometimes specifically Mexican immigrants. There is a very dangerous underpinning to some of the base here that has intentionally been driving conspiracy

theories of the deep state, of a “great replacement,” and utilizing that to drive fear about our government and to drive fear in the absence of facts. That suggests that things are being stolen from people who are experiencing some real pain. And I think we need to acknowledge that, right? There are real problems. We do have inequalities, like corporations being able to run rampant over people, a lack of jobs, a rent that’s too damn high. But this extremism paves the way for Trump to come for voting rights and immigrants without helping the people who need it.

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That’s how we get the Trump administration bringing in white South Africans and saying they’re “refugees” who are suffering, or a civil rights division at the DOJ that’s going to protect only Christians.

Not just protect them, but make sure to go and prosecute everyone else. Prosecute everyone for trying to vote. I mean, we’ve essentially watched this administration turn the DOJ’s Civil Rights Division—which was created and empowered to protect and enforce civil rights laws—into a weapon of Project 2025. A sword and not a shield. This administration is doing it because it benefits Donald Trump personally and politically.

It’s a feature, not a bug, that if, along the way, as you use government to take rights from some classes of people and confer rights to other classes of the people, you also discredit entire institutions so that nobody believes that elections are fair. Nobody believes that the Justice Department’s prosecutors are genuinely doing their job. Nobody believes that the district courts should have the power to grant universal injunctions. You’re sowing the ground for the sort of authoritarian takeover of all institutions, because nothing works.

Right, and that is a point. It is to drive wedges between people. And those wedges are the minorities, the people who have suffered discrimination, the people for whom there are already stereotypes and tropes. What authoritarianism does is drive those divisions. There’s a reason Donald Trump started on Day 1 with attacking diversity, equity, inclusion, and accessibility. There’s a reason why, when a plane crashes and devastates over 60 families because their loved ones have now been killed, he blames people with disabilities. You do all these things because it is how

you tell people: *Don't worry about how I am destroying everything around you. I'm asking you to be distracted from that so I can consolidate my power without you complaining—so that you think I'm doing it in service to you when, actually, I'm doing it in selfishness.*

Not everyone who voted for Trump is racist. A lot of people voted for him because they wanted to disrupt a government that doesn't work for them. And they believed he would do that. There are people who voted for him for that reason and who are kind of going, "Wait, what?" Because it's not quite what they expected.

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